

# An Act

ENROLLED SENATE  
BILL NO. 1461

By: Bergstrom of the Senate

and

Kendrix of the House

An Act relating to education; amending 70 O.S. 2021, Section 23-105, as amended by Section 1, Chapter 296, O.S.L. 2023 (70 O.S. Supp. 2025, Section 23-105), which relates to the Oklahoma Educational Television Authority; extending sunset date; and updating statutory language.

SUBJECT: Oklahoma Educational Television Authority

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 23-105, as amended by Section 1, Chapter 296, O.S.L. 2023 (70 O.S. Supp. 2025, Section 23-105), is amended to read as follows:

Section 23-105. There is hereby re-created, to continue until ~~July 1, 2026~~ July 1, 2031, in accordance with the provisions of the Oklahoma Sunset Law, Section 3901 et seq. of Title 74 of the Oklahoma Statutes, a body corporate and politic to be known as the "Oklahoma Educational Television Authority", and by that name the Authority may sue and be sued, and plead and be impleaded. The Authority is hereby constituted an instrumentality of the state, and the exercise by the Authority of the powers conferred by this ~~article~~ section for the planning, construction, operation, and maintenance of educational television facilities shall be deemed and held to be an essential function of the state.

The Oklahoma Educational Television Authority shall consist of thirteen (13) members, including the President of the University of Oklahoma, the President of Oklahoma State University, the ~~State~~ Superintendent of Public Instruction, the Chancellor of ~~the~~ The

Oklahoma State ~~Regents for~~ System of Higher Education, the president of one of the state-supported four-year colleges to be chosen by the presidents of ~~this group of~~ said institutions, the president of one of the state-supported two-year colleges to be chosen by the presidents of ~~this group of~~ said institutions, and seven additional members to be appointed by the Governor with the advice and consent of the Senate, to serve seven-year terms.

The appointed members shall have been residents of the state for at least five (5) years preceding the date of their appointment. The appointed members shall include one member from each of the congressional districts, and any remaining members shall be appointed from the state at large. However, when congressional districts are redrawn each member appointed prior to July 1 of the year in which such modification becomes effective shall complete the current term of office, and appointments made after July 1 of the year in which such modification becomes effective shall be based on the redrawn districts. Appointments made after July 1 of the year in which such modification becomes effective shall be from any redrawn districts which are not represented by an authority member until such time as each of the modified congressional districts are represented by an authority member. A majority of the appointed members shall be actively engaged in the profession of education. Each appointed member of the Authority, before entering upon the duties of the member, shall take the oath provided for by Section 1 of Article XV of the Oklahoma Constitution ~~of the State of Oklahoma~~.

The seven original members appointed by the Governor shall continue in office for terms expiring on June 30, 1954; June 30, 1955; June 30, 1956; June 30, 1957; June 30, 1958; June 30, 1959; and June 30, 1960, respectively. The terms of each of the original appointed members shall be designated by the Governor, and ~~said~~ such members shall serve for their appointed terms and until their respective successors shall be appointed and qualified. The successor of each appointed member shall be appointed for a term of seven (7) years, except that any person appointed to fill a vacancy shall be appointed to serve only for the unexpired term ~~in said~~ of such vacancy.

The Authority shall elect from ~~the its~~ its membership ~~of the~~ Authority a chair, a ~~vice-chair~~ vice chair, and a ~~secretary-treasurer~~ secretary treasurer. Any ~~such~~ officers elected by the

Authority on or after July 1, 1984, shall be appointed to serve a term of one (1) year. Seven members of the Authority shall constitute a quorum, and the vote of seven members shall be necessary for any action taken by the Authority. No vacancy in the membership of the Authority shall impair the right of a quorum to exercise all the rights and perform all the duties of the Authority. The Authority shall meet at least quarterly.

The members of the Authority shall not be entitled to compensation for their services, but each member shall be reimbursed for travel expenses incurred in performing official duties in accordance with the provisions of the State Travel Reimbursement Act. No liability or obligation shall be incurred by the Authority beyond the extent to which monies shall have been provided pursuant to the authority of this ~~article~~ section.

Passed the Senate the 25th day of March, 2026.

\_\_\_\_\_  
Presiding Officer of the Senate

Passed the House of Representatives the 29th day of April, 2026.

\_\_\_\_\_  
Presiding Officer of the House  
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

By: \_\_\_\_\_

Approved by the Governor of the State of Oklahoma this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

\_\_\_\_\_  
Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

By: \_\_\_\_\_